MIKO NXELE
versus
ESTATE LATE NEVER VAMBE MUTEMERI
(Represented by Fortune Mutemeri in his capacity as executor testamentary)
and
TESLAT INVESTMENTS (PVT) LTD
and
TETRAD HOLDINGS LIMITED
and
THE REGISTRAR OF DEEDS
and
THE MASTER OF THE HIGH COURT

HIGH COURT OF ZIMBABWE
MAMBARA J
HARARE; 3 March, 18 June & 17 July 2026

Civil Trial

B Magogo, for the plaintiff
E Murahwa, for the 1st defendant
I Chikaka, for the 3rd defendant

MAMBARA J:

Background and issues

[1] The plaintiff issued summons for a declaratur that the sale agreements in respect of Stand 20907 and Stand 20909 Ruwa Township were binding on the first defendant; an order compelling the steps necessary for transfer into his name; and, alternatively, payment of damages then pleaded at US$39 882 together with interest and costs. The summons and declaration show that the plaintiff's case was that he bought the stands in August 2003, paid the purchase price and ancillary charges, but transfer was frustrated by the death of Never Vambe Mutemeri before title could pass.

[2] The pleadings and the joint pre-trial issues narrowed the dispute to four broad questions: whether the plaintiff's agreements were binding on the first defendant; whether the

two stands were available for transfer; whether damages were due in the alternative; and whether the plaintiff's claim was properly before the court in light of the administration of the deceased estate. By the close of the evidence, much of the controversy about the existence of the plaintiff's agreements had significantly receded. The real contest concerned the competing claim advanced through the 3rd defendant and the appropriate remedy.

[3] The first and second defendants had, on paper, denied that the late Never Vambe Mutemeri contracted with the plaintiff, and had raised the point that the estate had been wound up such that the plaintiff had "missed the bus". The third defendant pleaded that it had purchased the same two stands later in September 2003, had lodged its claim in the estate, and had been awarded the stands in the course of the distribution account.

Trial evidence

[4] The plaintiff testified that he purchased the stands in 2003 through Sommerfield Real Estate, an estate agency which, according to the documentary trail and oral evidence, had been mandated to market the Elizabeth Park Ruwa project associated with the late Mutemeri. He identified the two written agreements that were produced as exhibits, explained that he personally signed one and that his wife signed the other on his behalf after he had returned to his work station abroad, and stated that the seller was understood in practice to be Never Vambe Mutemeri acting through Teslat Investments (Pvt) Ltd.

[5] The plaintiff further testified that he paid the deposits, the instalments, accrued interest, and later the additional amounts demanded for culverts and endowment fees. His evidence that the transaction was not merely notional was supported in the record by receipts, completion letters, and subsequent correspondence demanding further development-related payments. He said he could not take occupation because the area had not yet been fully serviced.

[6] The plaintiff's evidence was that he only became aware, around the end of 2015, that the seller had died. On making inquiries, he approached Fortune Mutemeri, who furnished him with the deceased estate reference and, on his version, indicated that the stands were available. When his legal practitioners demanded transfer in August 2016, the executor's legal practitioners responded that the estate was closed, yet in the same letter stated that the stands referred to had "never [been] claimed by anyone". That letter became an important feature of the case.

[7] The plaintiff then took the matter to the Master. The Master's letter of 25 January 2017, which was produced at trial and relied upon in the plaintiff's closing submissions, expressly stated that the office did not agree that the estate had been closed and directed the executor to assess the claims and deal with each claim on its merits. That evidence materially weakened the defendants' technical reliance on finality of the estate administration.

[8] The plaintiff also led evidence concerning a similar claim by one Samuel Mwale arising from an agreement signed in the name of Teslat but accepted by the executor as a valid claim against the estate. The plaintiff's case was that the same reasoning which had prevailed in relation to stand 20908 and the Mwale agreement ought to apply to stands 20907 and 20909. He testified that, if transfer was impossible, he claimed the values of the stands as established by valuation reports obtained before trial.

[9] Those valuation reports, contained in the consolidated papers, assessed stand 20907 at US$21 700 and stand 20909 at US$21 000 as at 27 August 2023. Significantly, each report described the relevant stand as undeveloped and unoccupied and as a vacant serviced residential stand. That evidence stands in sharp tension with the broad oral assertions later made on behalf of the third defendant that the disputed stands had long been occupied and developed by employees.

[10] Fortune Mutemeri testified for the first defendant as executor. He explained the registration of the estate, the 2013 advertisement calling for claims, and the preparation of the first and final liquidation and distribution account. He said the estate received numerous claims and that the third defendant was among those who claimed stands. He also said that the letter written by his legal practitioners in August 2016 stating that the plaintiff's stands had been claimed by no one was an "error".

[11] Under cross-examination, however, Fortune Mutemeri made a series of material concessions. He accepted that his late father used his personal name and Teslat Investments interchangeably when selling stands in Elizabeth Park. He accepted that, if Tetrad were not claiming the same stands, he would not oppose the plaintiff's claim. He also accepted that the estate later opened a further verification process for purchasers who came forward, and that this was done even after the distribution account had been confirmed. Those concessions were not withdrawn.

[12] Fortune Mutemeri also purported to speak for Teslat Investments, yet the evidence at trial was that he had no company resolution authorising him to represent the second defendant and was not shown to be a director of it. That point matters because the second defendant was not a mere bystander in the transaction narrative. It was the vehicle through which the late Mutemeri had the plaintiff sign the agreements.

[13] The third defendant's case was advanced principally through Augustine Teta, a former finance officer and later finance manager. He testified that Tetrad bought nineteen stands from Never Vambe Mutemeri in September 2003, including stands 20907 and 20909; that the agreements of sale were executed on 17 September 2003; and that payment followed two days later. The third defendant's documentary bundle indeed contains agreements for stands 20907 and 20909 together with two receipts, and it also contains a copy of the distribution account and the statutory advertisement.

[14] What the third defendant's documentary case did not contain is equally important. Its bundle listed only six categories of documents: the two agreements, two receipts, the distribution account, and the advert for claims and objections. It did not include any onward agreements of sale to employees, any transfer documents to staff beneficiaries, any municipal bills, any proof of occupation by named employees, or any documentary proof that Tetrad paid part of the Master's fees.

[15] A board resolution of Tetrad dated 30 July 2013 was later produced, and it lists stands 20907 and 20909 among nineteen stands and states that those pieces of land were "subsequently sold to the Company's staff members." The same resolution empowered Augustine Teta to sign documents and to act on behalf of the company in dealings with the estate, the executor, the Registrar of Deeds, and court proceedings concerning the stands. But the resolution, standing by itself, was not proof of actual onward sales, transfers, development, or municipal occupation. It did not cure the conspicuous absence of primary evidence proving that any employee actually acquired, occupied, developed, or paid rates in respect of either of the two stands now in issue.

[16] The plaintiff's closing submissions correctly highlighted that one of the stands, namely stand 20909, was said to bear a sign pointing to a different entity, IDBZ, and that the evidence did not rebut the plaintiff's case that the stands remained available. Whether one accepts the IDBZ detail in full or not, the broader point remains: the evidential foundation for the third defendant's broad claim of settled employee occupation was notably thin.

Governing law and analysis

[17] The first issue I deal with is whether the plaintiff's claim was properly before the court. Section 43 of the Administration of Estates Act [*Chapter 6:01*] requires an executor to publish notice calling upon creditors to lodge claims. Section 45 then regulates what the executor must do after the expiry of the period. Subsection (3) protects an executor and paid creditors against later restitutionary claims by creditors who failed to lodge timeously, but the text of the subsection is directed at recovery of funds already distributed and at claims against the executor arising from distributions made before the late claim became known. It does not, on its own terms, erect an absolute bar against every later judicial determination concerning property that remains embroiled in dispute, especially where the Master says the estate is not closed and directs the executor to assess the claim on the merits.

[18] The Master's directive in this matter was unequivocal: the office did not agree that the estate had been closed and instructed the executor to assess the plaintiff's claims on their merits. The executor's own evidence was that a later verification exercise was undertaken because further claimants emerged after finalisation of the account. In *Vandira* v *Estate Late George William Noble and 2 Ors* (10 of 2023) [2023] ZWMSVHC 12, the court recognised that, in the presence of fraud, misrepresentation, or material non-disclosure, a deceased estate may be reopened and the Master's confirmation revisited. That principle answers the defendants' technical objection in this matter.

[19] The plaintiff also cited the correct estate and cited the executor in his representative capacity. That is the orthodox way of litigating a claim touching estate property. Recent Zimbabwean authority confirms that a claimant seeking property from a deceased estate must sue the estate and join or sue the executor as representative. The point *in limine* therefore falls away.

[20] I turn to the binding force of the plaintiff's agreements. Section 36 of the Civil Evidence Act [*Chapter 8:01*] provides that an admission made by or on behalf of a party is admissible as proof of the admitted fact; further, it is not necessary to prove a fact admitted on the record, and a party may not disprove such an admission without leave. That statutory position has recently been reaffirmed by the Supreme Court in *SHAH* v *NHERERA* (55 of 2024) [2024] ZWSC 55, where the Court emphasised that unwithdrawn admissions in civil proceedings are binding and cannot be contradicted by *viva voce* evidence. The same broad

principle had earlier been stated in *Mining Industry Pension Fund* v *DAB Marketing (Pvt) Ltd (*SC 25 of 2012) [2012] ZWSC 25.

[21] In the present case, Fortune Mutemeri admitted in evidence that his late father sold stands sometimes in his own name and sometimes through Teslat. He accepted that the plaintiff's claim would have been honoured but for the competing claim by Tetrad. The plaintiff also proved the agreements, receipts, completion letters, and the later demands for project-related fees. Those facts place the existence and substantial performance of the plaintiff's contracts beyond serious controversy.

[22] Counsel for the plaintiff further urged the court to pierce the corporate veil in order to prevent the late Mutemeri's use of Teslat as an interchangeable vessel from defeating meritorious purchasers. Zimbabwean law accepts that separate juristic personality is not lightly disregarded, but it may be pierced where the corporate form is abused for fraud, dishonesty, impropriety, or manifest injustice. That is the ratio apparent in *Eddies Pfugari (Private) Limited and Anor* v *Knowe Residents and Ratepayers Association and Anor* (2 of 2021) [2021] ZWSC 2, *Tindwa* v *The Sheriff for Zimbabwe and Anor* (94 of 2022) [2022] ZWSC 94, and the modern statutory formulation in s 62(3) of the Companies and Other Business Entities Act.

[23] This is, in my view, an appropriate case for that principle. The late Mutemeri was shown on the evidence to have sold stands using his own name and Teslat's name interchangeably while title remained elsewhere in the development matrix. To insist on a rigid separation in those circumstances would reward the very ambiguity he created and would visit the prejudice on an innocent first purchaser who paid in full. I therefore hold that the plaintiff's agreements are valid and binding as against the first defendant estate, and that Teslat cannot escape the legal consequences of the contracts concluded through that alter-ego arrangement.

[24] I then come to the real difficulty: the third defendant's competing claim. Zimbabwean authority has consistently treated a double sale of immovable property, before transfer has passed, as a contest where the first purchaser is ordinarily preferred unless special circumstances or stronger countervailing equities are proved. That appears from *Sibanda* v *Sibanda and Ors* [2009] ZWBHC 12 and *Runganga* v *Lunga (Nee Tiwandire) and Ors* [2004] ZWBHC 92. By contrast, *Gardner* v *Dampier Development (Pvt) Ltd & Others* [2012] ZWSC 24 concerned a later purchaser with registered title and does not assist the third

defendant, because in this matter the third defendant did not prove that title ever passed to it or to any employee-beneficiary.

[25] South African authority is to the same broad effect, though expressed through the doctrine of notice. In *Bowring NO* v *Vrededorp Properties* CC 2007 (5) SA 391 (SCA) the court described the position in successive sales and confirmed that where the second purchaser takes with knowledge of the first purchaser's prior right, the first purchaser may obtain relief even against the later acquirer. *Meridian Bay Restaurant (Pty) Ltd* v *Mitchell NO* 2011 (4) SA 1 (SCA) and *Associated South African Bakeries (Pty) Ltd* v *Oryx & Vereinigte Bäckereien (Pty) Ltd* 1982 (3) SA 893 (A) similarly recognise that a later acquirer who proceeds despite actual notice or its equivalent cannot rely on formalism to defeat the earlier right.

[26] I need not, however, decide this matter by reference to the full rigour of the doctrine of notice against a later transferee because the third defendant never proved registered title. The title position remained tied to the estate side of the transaction. The contest is therefore more closely one between conflicting personal rights and the equities raised by the evidence. On those equities, the third defendant's case was materially under-proved. It had later agreements of sale and receipts, yes. But it did not produce the evidence one would expect if its employees had indeed occupied, developed, taken over, and been paying municipal dues for these stands over many years.

[27] The absence of that proof is decisive. A court does not determine the fate of immovable property on submission and assertion alone. When a party invokes third-party occupation, development, rates, and beneficial employee transfers to displace an earlier purchaser who paid in full, the court expects primary evidence. There was none. On the record as it stood at the end of the trial, the third defendant did not prove a stronger equitable claim to stand 20909, and did not prove special circumstances sufficient to defeat the plaintiff's prior right.

[28] I now address remedy. Zimbabwean and Southern African law treat specific performance as the primary contractual remedy, subject to the court's judicial discretion to withhold it where hardship, impossibility, supervision difficulties, or inequity make damages the fairer remedy. That principle appears in *Eddies Pfugari,* the Zimbabwean decisions in *Mwerenga* v *City of Harare Department of Housing [*2021] ZWHHC 262 and *CRAFTCALL INVESTMENTS (PRIVATE) LIMITED* v *CHIPENDO [*2024] ZWHHC 198, and in the classic

South African line beginning with *Haynes* v *Kingwilliamstown Municipality* 1951 (2) SA 371 (A) and restated in *Benson* v *SA Mutual Life Assurance Society* 1986 (1) SA 776 (A). The central proposition is that the plaintiff ordinarily elects the remedy, but the court retains a discretion that is "not circumscribed by rigid rules."

[29] On the evidence before me, stand 20909 is the stand in respect of which specific performance should issue. The plaintiff's case specifically singled out that stand as not shown to be in settled employee occupation. The third defendant produced no municipal bills, no employee allocation or transfer documents, and no proof of development. Above all, the valuation report for stand 20909 recorded it as undeveloped and unoccupied as at 27 August 2023. In those circumstances, the law operates with full force in favour of the first purchaser, and there is no sufficient equitable reason to deny transfer of that stand.

[30] The position of stand 20907 is less satisfactory. The record contains a valuation describing it too as unoccupied in August 2023. But the plaintiff's own forensic emphasis, and the incompletely proved but persistent assertions of the first and third defendants about employee occupation and structures, leave a residual factual haze around that stand that is not present, in any comparable degree, with stand 20909. Since the court's discretion in specific performance must be exercised practically and justly, and since the plaintiff's substantial right can be vindicated by transfer of one stand together with a monetary substitute for the other, I consider that damages are appropriate for stand 20907. That course avoids the risk of unsettling non-parties on an evidential foundation that is less than clear, while still giving the plaintiff meaningful relief after a full trial.

[31] The appropriate damages for stand 20907 are the value proved before trial. The valuation in the record placed that stand at US$21 700. That figure was not displaced by any competing expert evidence. It is, in my view, the proper amount to award in substitution for transfer of that stand.

[32] In the result, it is ordered as follows:

1. The agreements of sale concluded in the plaintiff's favour in respect of Stand 20907 Ruwa Township and Stand 20909 Ruwa Township, both being subdivisions of Subdivision A of Chito of Sebastopol, are hereby declared valid and binding upon the Estate Late Never Vambe Mutemeri and Teslat Investments (Pvt) Ltd.

2. The first defendant, in his capacity as executor testamentary of the Estate Late Never Vambe Mutemeri, shall, within sixty days of this judgment, take all steps necessary to procure the transfer of Stand 20909 Ruwa Township into the plaintiff's name, and the fourth defendant shall give effect to such transfer upon proper presentation of the documents required by law.

3. In the event of default by the first defendant in complying with para [2], the Sheriff of Zimbabwe is hereby authorised to sign all documents and do all acts necessary to secure transfer of Stand 20909 Ruwa Township to the plaintiff in place of the first defendant or any other recalcitrant party whose signature may be required.

4. The plaintiff's claim to transfer of Stand 20907 Ruwa Township is refused in the exercise of the court's discretion as to specific performance, and is substituted by an award of damages. The first and second defendants shall pay to the plaintiff, jointly and severally, the one paying the other to be absolved, the sum of US$21 700 being the value of Stand 20907 Ruwa Township.

5. Interest on the amount in para [4] shall run at the prescribed rate from the date of this judgment to the date of payment in full.

6. The third defendant's opposition, insofar as it is inconsistent with the transfer of Stand 20909 Ruwa Township to the plaintiff, is dismissed.

7. The first, second and third defendants shall pay the plaintiff's costs of suit jointly and severally, the one paying the others to be absolved.

MAMBARA J……

……., for the plaintiff
……., for the first defendant
……., for the third defendant